MAJOR GENERAL (RETIRED) GODFREY MUPITA

versus

THE MINISTER OF DEFENCE & WAR VETERANS AFFAIRS

And

THE CHAIRMAN OF THE ZIMBABWE DEFENCE FORCES

SERVICE COMMISSION

And

THE ATTORNEY GENERAL OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 13 FEBRUARY, 06 MARCH & 29 JULY 2026

Summons commencing Action- Specific Performance

G. Sengweni, for the plaintiff
S. Jukwa, for the defendants

MPOKISENG DUBE J: As a student of African history and a student of law, I have often come across exaltations of those that took up arms and fought for the liberation of the African continent such as:

" For….. their blood watered our freedom"

"The gallant sons and daughters of Africa"

Such always steer feelings of deep pride, and admiration for those selfless individuals whose bravery sets then apart from the majority of us ordinary mortals. Such recognition is not mere idle talk. It is embodied in section 23 of our 2013 Constitution. It reads as follows:

"23 Veterans of the liberation struggle

(1) The State and all institutions and agencies of government at every level must accord due respect, honour and recognition to veterans of the liberation struggle. That is to say-

(a) Those who fought in the War of Liberation;

(b) Those who assisted the fighters in the War of Liberation; and

(c) Those who were imprisoned, detained or restricted for political reasons during the liberation struggle.

(2) The State must take reasonable measures, including legislative measures. For the welfare and economic empowerment of veterans of the liberation struggle."(*My own underlining for emphasis.)*

In *casu*, the plaintiff issued out summons seeking the following relief:

1. Specific performance by the defendants for the following:
   a. Sell to plaintiff at 3% of residual value a pickup vehicle of the type issued to a serving Brigadier General which is not older than two (2) years.
   b. Deliver to plaintiff a Sedan Mercedes Benz and a Land Cruiser vehicle or equivalent vehicles of the types issued to a serving Major General.
   c. Construct a private residence on not more than 3000 (three thousand) square metres in Harare.
2. Costs of suit on an attorney and client scale.

The facts of this matter are brief and straight forward.

Plaintiff was the Defence Adviser of Zimbabwe in Nigeria from May 2006 to 30 July 2016. He retired from active service on 30 October 2020. Upon retirement he became entitled to benefits as stipulated under the Third Schedule (Section 19C paragraph 1(b) (i) (ii) and (d) (i)(ii) and (e) of the State Service (Pensions) (Uniformed Forces) (Amendment) Regulations 202 (No. 17). S.I 257 of 2020.The section provides as follows:

"*Housing*

(b) The provision of residential accommodation, namely—

(i) The free transfer of ownership to the beneficiary of a State residence already occupied by such beneficiary if appropriate on the date of his or her retirement; or

(ii) if the beneficiary was not occupying a State residence on the date of his or her retirement, the free transfer to the beneficiary of a single equivalent private residence on not more than 5 000 square metres of land, acquired or constructed on his or her behalf at any place of his or her choice in Zimbabwe, which acquisition or construction must be done or commenced within two months of the beneficiary's retirement;

……

Transport

(d) The provision of the following vehicles, namely—

(i) one sedan Mercedes Benz of the same kind as a serving commissioned officer of the same rank as the beneficiary is using in the course of his or her duties to the State; and

(ii) one four-wheel drive Land Cruiser or an equivalent or similar type of motor vehicle, of the same kind as a serving commissioned officer of the same rank as the beneficiary is using in the course of his or her duties to the State;

(e) the beneficiary may purchase both of the vehicles referred to in subparagraph (d)(i) and (ii) at 3% of the residual value of the vehicle in accordance with the rate of depreciation of the vehicle (if the active ex-combatant concerned dies before retirement, his or her spouse shall be entitled to buy both vehicles at the same residual value."

Of the benefits stipulated in paragraph 1(b) Defendants readily conceded that they ought to comply but subject to availability based on the date of retirement. In other words the Plaintiff should fall in queue. Defendants only dispute the benefit accruing under item (d)(ii) and (e).

Numerous efforts which include issuance of a Notice of Intention to sue dated 2 October 2023 served on the Defendants on 4 October 2023 were made to recover the benefits from the Defendants but all met with no success. Plaintiff in the circumstances prays for the relief as per his summons. In the course of exchanging pleadings, the Plaintiff filed a notice of amendment by consent to the effect that the Defendants ought to construct a private residence on not more than "5000 (five thousand square metres in Harare" as provided for item 1(b) cited above per the State Service (Pensions) (Uniformed Forces) (Amendment) Regulations 202 (No. 17).

At commencement of the trial the parties agreed that the facts of the matter were in fact common cause. From the pleadings the Defendants conceded that they owe the Plaintiff all his other claims except the Land Cruiser motor vehicle as described *supra*.

They contended that he had waived that entitlement after he opted to purchase the Toyota Prado he used while still holding the title of Brigadier General. The parties thus executed a statement of agreed facts as follows:

1. *That the Defendants admit liability to provide the Plaintiff with the vehicle as is stipulated in the Third Schedule (Section 19C) Section 1 (d) (ii) of the State Service (Pensions) (Uniformed Forces) (Amendment) Regulations, 2020 (No. 17).*
2. *The Defendants contend that if the Plaintiff is provided with the vehicle described in paragraph (1) above he will not exercise the option to purchase the vehicle as is provided in paragraph (e) of the Regulations referred to in (1) above whilst the Plaintiff contends otherwise.*

That leaves the parties to argue on what exactly is meant by paragraph 1"

The parties then filed their closing submissions and argued the matter orally.

Arguments for the Plaintiff

Mr Sengweni chose to abide by his written closing submissions but argued orally that the statutory instrument that gives rights to the Plaintiff was enacted specifically to benefit the ex-combatants who were in the uniformed forces. He argued further that the light in which this piece of legislation should be looked at is one in which ex-combatants affected should have an advantage. The issue before court is only the interpretation of the transport benefit. That per sec 19© (i), (d) (ii) the Plaintiff was a Brigadier General. He gave his notice to retire per the said regulations and was promoted to Major General. In terms of the regulations the vehicles to be provided to him are those used by a serving Major General. He contended that the only ambiguity comes when one reads para (e) which provides that the beneficiary may purchase both motor vehicles referred to in para (d)(i) and (d)(ii) at 3% of the residual value.

Arguments for the Defendants

Mr Jukwa on the other hand while also abiding by his written submissions argued that what is described under para (d) of the S.I are the same vehicles under para (e). The only difference is that the beneficiary may waive his right to be issued with a motor vehicle under para (d) if he opts to purchase the residual value of the motor vehicle, he was using prior. In the present case he argued that the Plaintiff had already opted to purchase the Toyota Prado that he had been using as a Brigadier General. *Mr Jukwa* raised an ingenious argument that the said vehicle even though of a lower specification than those issued to holders of the rank Major General remains a Land Cruiser on paper per its description.

Mr Jukwa argued that he appreciates the argument that it is illogical but what is clear according to him is that it is open to the beneficiary to waive his right to be issued with such motor vehicle. If he does so then not much can be done. It just has to be accepted.

Analysis of the facts against the rules of interpretation.

What really sets the parties apart is not much. It is just a matter of interpretation of the applicable law. As I have stated *supra* the 2013 Constitution at sec 23 (3) pronounces itself in unambiguous terms that there is a deliberate intention to treat veterans of the armed struggle differently. It provides as follows:

> "*(2) The State must take reasonable measures, including legislative measures for the welfare and economic empowerment of veterans of the liberation struggle.*

Clearly the amendment introduced by S.I 257 of 2020 is one such legislative measure for the welfare and economic empowerment of veterans of the liberation struggle. The intention of the legislature here is clearly to promote the welfare of active ex-combatants such as the Plaintiff.

In my view the decider herein is the fact that when the Plaintiff submitted his intention to retire he was promoted to the rank of Major General. He ceased to be a Brigadier General. He could no longer use the vehicles of a lesser rank. Matters could have been different if he was not an active ex-combatant. If he retired, he would have still held the rank of a Brigadier General. He could have been eligible to the benefits of that rank. If he retired at that level as a non ex-combatant Major General, it means he would have served in that rank for a while before giving notice of his retirement. It means therefore he would have been in possession of motor vehicles commensurate with that rank. He could rely on part (e) of section 19C subsection 1. It means he could keep the vehicles he had been using as Major General. In this case he could not have been using such vehicles as he got to that rank by virtue of his notice to retire. For that reason he should be awarded brand new motor vehicles a Land Cruiser and a Mercedes Benz commensurate to the rank he retired in, i.e of a Major General.

To then hold that he waived his entitlements by purchasing an old Prado falling under the rank of a Brigadier General would be to deliberately deny him the exalted treatment S.I 257 of 2020 accords him as an active veteran of the liberation struggle.

It is for that reason that I accept the case law authorities cited by *Mr Sengweni* to the effect that the law must not be interpreted to disadvantage the subject. Clearly, sub-paragraph (e) gives the beneficiary an added advantage to purchase the vehicles he/she was using in his/her duties to the State whilst in active service if he can afford the 3% of the residual value

as the purchase price. The provisions in contention are couched in a fashion that gives the words used their ordinary meaning.

The Literal/Cardinal Rule of interpretation is at play in this matter. Words are given their ordinary meaning. If the law maker's language is clear, the court must apply it as was as held in *S v Nottingham Estates (Pvt) Ltd* 1995 (1) ZLR 253 (8S).

> "The primary rule of interpretation is, to endeavour to entertain the intention of the legislature from a close examination of the provisions in consideration, placed in proper context. A court will commence its enquiry by giving the word its grammatical signification, unless it is clear that the literal sense, if so applied defeats the lawmaker's intent ....."

On the statement of law I also agree with the case law authorities submitted by *Mr Jukwa* as being very helpful. He strongly contended that it is the duty of the court to interpret statutes, where the language used in a statute is unambiguous, the words ought to be given the ordinary grammatical meaning. However, where the language used is ambiguous and lacks clarity, the court will need to interpret it and give it a meaning. The contentious provision is unambiguous and it ought to be given its ordinary meaning. He cited the case of *Endeavour Foundation and Another v Commissioner of Taxes* 1995 (1) ZLR 339 S @ p 35F-G, the Supreme Court stated

> "The general principle of interpretation is that the ordinary, plain, literal meaning of the word or expression that is as popularly understood is to be adopted unless that meaning is at variance with the intention of the Legislature as shown by the context or such other indicia as the court is justified in taking into account or create an anomaly or otherwise produces irrational results"

He submitted further that the starting point in relation to the interpretation of statute generally would be what is termed "the golden rule" of statutory interpretation. The rule is authoritatively stated in the case of *Coopers an Hybrand and Others vs Bryant* 1995 (3) SA 761 (A) @ 767

I must state that *in casu* there is no ambiguity in the statute. Once an active ex-combatant attains a rank he/she is entitled to the benefits that accrue to such rank and nothing less. They cannot be awarded the vehicles they used while in active service on a lower rank as their position is sui generis. Their issuance of a notice to retire and its acceptance by the President is a *sine qua non for* promotion to the next rank. The new benefits start accruing immediately there from.

Plaintiff can no longer benefit from purchasing another vehicle at 3% of residual value a pickup vehicle of the type issued to a serving Brigadier General which is not older than two (2) years as this does not apply to rank.

Furthermore with the concessions made by the defendants there is no justification why they should be visited with costs as they have always intended to comply with the provisions of section 19C of S.I 257 of 2020 had resources been permitting.

In the foregoing I make the following disposition.

Disposition

1. The Defendants, jointly and severally, one paying for the other to be absolved shall deliver to Plaintiff a Sedan Mercedes Benz and a Land Cruiser vehicle or equivalent vehicles of the types issued to a serving Major General.
2. The Defendants shall jointly and severally one paying for the other to be absolved construct a private residence on not more than 5000 (three thousand) square metres of land in Harare being Plaintiff's town of choice.
3. Each party shall bear its own costs.

Sengweni Legal Practice, plaintiff's legal practitioners
Civil Division of the Attorney General's Office, defendant's legal practitioners